

		the belated objections relate.” <i>Id.</i> (discussing CCP §2031.300(a), which is to same effect as CCP §2030.290(a)). With respect to the second, Defendant’s counsel points to several failures of communication resulting in her being unaware. According to her declaration, Defendant’s counsel was originally unaware of the discovery because it was served on Defendant’s agent for service of process rather than counsel. Nor did Plaintiffs’ counsel alert Defendant’s counsel that there was outstanding discovery that she had not responded to. Further, counsel did not realize she had failed to respond when served with the motions to compel because they were mistakenly logged as motions to compel <i>further</i> responses. [Do Decl. (ROA #103), ¶¶ 2-3.] “Accordingly, I was not aware that Nissan’s discovery responses were overdue.” [<i>Id.</i>, ¶ 3.] Under the circumstances, the court finds counsel’s neglect to be excusable. <i>See City of Fresno v. Superior Court</i> (1988) 205 Cal.App.3d 1459, 1467 (applying CCP 473 standard under predecessor to CCP §2031.300(a), which is to same effect as CCP §2030.290(a)). Accordingly, Defendant’s motion for relief from waiver is granted.
7.	2023-1332366 Adorn Premiums v. J Style Premiums	Demurrer to First Amended Complaint Defendant Freeway Industrial Park’s demurrer to the second and fifth causes of action of Plaintiffs Adorn Premiums, LLC and Joshua Ivy’s First Amended Complaint is VACATED. It appears that Plaintiffs attempted to file a First Amended Complaint (“FAC”) on September 30, 2024. (ROA 67.) The attempt was rejected, however, with the Clerk commenting that leave of court was needed to file an amended complaint. (<i>Id.</i>) The instant demurrer is premature. No FAC has yet been filed and one cannot be filed without leave of court. Defendant Freeway Industrial Park to give notice. Motion to Be Relieved as Counsel of Record Attorney Brian Davis and Forward Counsel LLP move to be relieved as counsel for Plaintiff Adorn Premiums LLC. The motion is DENIED without prejudice.

		On February 26, 2025, the Court continued the instant motion to be relieved as counsel of record at Moving Counsel's request and ordered Forward Counsel LLP to give notice. (ROA 105 [02/26/25 Minute Order].) There is no indication in the Register of Actions that Plaintiff Adorn Premiums LLC was served with either the initial moving papers or notice of the continued hearing date. Moving party to give notice. Motion to Be Relieved as Counsel of Record Attorney Brian Davis and Forward Counsel LLP move to be relieved as counsel for Plaintiff Joshua Ivey. The motion is DENIED without prejudice. On February 26, 2025, the Court continued the instant motion to be relieved as counsel of record at Moving Counsel's request and ordered Forward Counsel LLP to give notice. (ROA 105 [02/26/25 Minute Order].) There is no indication in the Register of Actions that Plaintiff Joshua Ivey was served with either the initial moving papers or notice of the continued hearing date. Moving party to give notice.
8.	2024-1421460 Bullard v. Florence Crittenton Services	Defendant Florence Crittenton Services of Orange County, Inc.'s demurrer to plaintiff Beatriz Bullard's complaint is overruled. Defendant is to file its answer within 10 days. The causes of action in Plaintiff's complaint are based on alleged sexual abuse when she was a minor in 1998-2000. Accordingly, the statute of limitation established by Code Civ. Proc. §340.1, 340.11 applies to her causes of action. The time for commencement of the action is within 22 years of the date that the plaintiff attains the age of majority or within 5 years of the date that the plaintiff discovers or reasonably should have discovered that the sexual assault caused the psychological injury or illness occurring after the age of majority, whichever period expires later. Code Civ. Proc. § 340.11(a)(1); 3 Witkin, Cal. Proc. 6th Actions § 644A (2025). Defendant generally demurs to the causes of action in Plaintiff's complaint because Plaintiff has not alleged facts to